

Deliberative Session Minutes

Road was not a Class 5 Road, and the Town has not been maintaining it other than grading it once a year. Recently, it came to light that a subdivision had been proposed in the Town of Jaffrey on the other side of Ingalls Road, and the concern was that people would think they could cut through Ingalls Road to get to Rindge and shop. So, at that time, the Town investigated the legal status of the road and found that it was a Class 5 Road. This was a surprise to everyone because it would mean that the Town was obligated to maintain it year-round. Its status as a highway to summer cottages formalizes what has been in practice over the years. The Town is hoping to try to limit its responsibility going forward if people do decide to use that road as a cut-through to get to Rindge.

Al Lefebvre stated that was not his point; he wanted to know why they were not notified. Dan Whitney also commented that it should be the process to notify abutters. Jason Czekalski asked how the people were being taxed; if they are being taxed as on a Class 5 Road, then they deserve the services of a Class 5 Road. Jason stated that there is no fairness when it comes to the two families that live on that road; they were not notified and there was no public discussion on it. Jason made a motion to amend Article 16 with a second to: "Shall the Town vote to maintain Ingalls Road as a Class 5 Road?"

Carlotta addressed Jason's question by stating there is no difference between the way the Town taxes properties on a Class 6 Road and a Class 5 Road. Rick Sirvint asked for clarification; if the road is now currently a Class 5 Road but is being maintained as a highway to summer cottages, and if it were to be maintained as a Class 5 Road, what would be a good estimate of the cost? Carlotta stated that it has never been maintained as a Class 5 Road and anyone who has ever driven on this road knows it is barely even passable.

Kathy John stated that if the road were to be reaffirmed as a Class 5 Road, the Town would be legally obligated to maintain it and then there could be significantly more traffic. She asked whether that is what the residents of Ingalls Road want or whether they want to maintain its current status as a road not fully maintained by the Town. Mr. Goundry stated that if it is indeed a Class 5 Road, why should the Town now present it as a highway to summer cottages? He said we should not be discussing this as both the abutters were not notified and could not prepare to make a reasonable response, though he said he could not speak for the other residents of Ingalls Road. He also stated that the part of Ingalls Road that is not maintained extends onto his property and toward the Franklin Pierce property; it is abused and has become somewhat of a trash disposal. The issue is that the abutters were never notified about the change of status of the access to their property, and he feels it should not be the subject of this meeting or of a Town vote. Dave Tower stated that, at the risk of getting involved where he probably shouldn't because he is not Town Counsel, his recollection without researching the issue is that when a town discontinues a road so that the road loses its public status, all abutters are required to be notified. Class 5 Roads and Class 6 Roads are the two general categories of town roads. Class 5 Roads are maintained and most roads we drive on every day are Class 5 Roads. Class 6 Roads have public status, meaning they are public ways but the Town has no duty to maintain them. Apparently, from what Jed had said, the road is a Class 5 Road and the Town has a duty currently to maintain it; if the motion were to change it from a Class 5 to a Class 6 Road, the road would still be a public way but it would not be maintained by the Town; the Town would have no duty or liability to maintain it.

Carlotta stated that, according to the RSA, there is no legal requirement to notify abutters. However, she did agree with Mr. Lefebvre that, as a courtesy, they should have although they were not advised by legal counsel to do so. Roberta Oeser stated that the problem with Jason's suggestion is that if we were to declare it to be maintained as a Class 5 Road, we then would be obligated to plow it during the winter; if he would change it to "maintain it as it is currently maintained" we would settle the matter of having to plow or do anything to it until the issue is resolved.

Jason made a motion to amend the Article with a second: "Shall the Town vote to maintain Ingalls Road as it is presently maintained, pursuant to RSA 231:81?" Al Lefebvre made a motion to move the question with a second.



Mr. Goundry made a statement that, because of the inconsistency and confusion, the motion to amend should not be accepted. Mr. Tower asked for a voice vote on Jason's amendment, and the amendment passed.

The amended article will be on the ballot.

YES – 727 NO – 318

ARTICLE 17. **Shall the Town vote to re-classify School House Road, Doll House Road, Elm Road, Bemis Tavern Road, and Bowers Hill Road from Class VI roads to Class A town trails per RSA 231-A:1?**

Jed presented Article 17; Jed stated that most of these roads are off of Ingalls Road. He said that the owner of the property, Stan Fry, would like to gate the roads to prevent four-wheeled vehicles from passing through but to allow walking, horse riding, and snowmobiling.

Stan Fry spoke on the Article; he stated that his 720 acres are mostly in Rindge and he has been cleaning up the area including three fields for recreation. He had been grading the roads but gave up a few years ago because, as soon as the roads were graded, the four-wheeled vehicles would come in and ruin them. Most of the roads are impassable, but there is a fair amount of passable property which is being ruined by four-wheeled vehicles, plus parties and vandalism are going on, 20' x 40' fires have been started, trash and debris have been left behind, and illegal activities are taking place. Mr. Fry put up four gates which cost two thousand dollars apiece, but they have been cut and stolen to be sold as scrap.

Paul Gagnon of the Conservation Forest Society stated that the townspeople can decide what restrictions they want for using the roads; the property would be posted. He stated that they have spoken to Mr. Goundry and the Johnsons; Mr. Goundry owns property that abuts Bowers Hill Road and he said he is fine with that as long as he has a key to the gate in the event he needs to access the property.

Rick Sirvint asked what would prevent more vandals from visiting the property since the gates have been destroyed and what measures the Town will take to preserve the natural beauty of this area. Paul said the gates that had been put up were relatively small and well inside the property; they restricted access to the fields and were away from public roads. These other gates will be a lot closer to public roads so when people drive by there will be greater visibility.

Jean Carguilo and Phil Stenersen both expressed their gratitude to Stan Fry for purchasing the land and their appreciation of his efforts. John O'Day stated that his family is probably more affected by the Article than anyone in the room. He said he lives on Kimball Road and his land abuts Bowers Hill Road; he said he does sympathize with Mr. Fry because his property has also been vandalized. He stated that the frontage they have on Bowers Hill Road, a Class 6 Road, could be built on with the permission of the Town; if it changes to a Class A Trail, they would no longer have that option.

Paul stated that they are asking that the road be classified as a Town Trail north of his property and that it would not affect his property; he invited someone to make a motion to include that language. John O'Day asked where law enforcement was as he has not seen anyone out there. Chief Sielicki said that calls sometimes come in weeks after the fact; they do go out as often as possible. John Kauer asked how Fire and Police would have access to the roads. Paul said they would have keys to the gates, and they could also cut the gates if need be. Al Lefebvre made a motion to amend the article with a second: "Shall the Town vote to re-classify from a Class VI Road to a Class A Trail per RSA 231-A: 1 School House Road, Doll House Road, Elm Road, Bemis Tavern Road, and Bowers Hill Road



beginning at the southerly boundary line of Map 9, Lot 13-1 and running northerly to Ingalls Road; and to restrict the use of motorized wheeled vehicles from these trails?

David Tower took a voice vote on the motion to amend and was not able to determine by voice vote; he then took a standing vote: YES – 49 NO - 33, the motion to amend Article 17 passed.

The amended Article will appear on the ballot.

YES – 619 NO – 464

ARTICLE 18. **Shall the Town vote to collect an additional registration fee of Five Dollars ($5) per vehicle for the purpose of supporting a municipal transportation fund and to establish a capital reserve fund for this purpose, with the Selectmen as agents to expend from the fund? This fund would allow the Town to fund, wholly or in part, improvements in the local transportation system, including roads, bridges, and pedestrian facilities, parking or public transportation per RSA 261:153?**

Sam spoke on Article 18; he stated that this would create an estimated $30,000 in yearly revenue that would help offset the State's $27,000 cut to the Town's Highway Block Grant that was for repaving Town roads. Craig Clark made a motion to amend the Article to replace "fee" with "tax" with a second. David Tower took a voice vote on the motion to amend; the motion to amend passed. Jason Czekalski said he feels the way the Article is written it would fail; he made a motion to strike the wording, "with Selectmen as agents to expend from the funds," with a second. David Tower took a voice vote on the amendment; the amendment failed by voice vote. Shirley Carney made a motion to restrict reconsideration with a second; the motion to restrict reconsideration was passed by voice vote.

The amended Article will appear on the ballot.

YES – 386 **NO – 730**

ARTICLE 19. **Shall the Town vote to change from a calendar year budget to an optional fiscal year budget (July 1 to June 30) and in order to do so, bring forward an 18-month budget at next year's annual town meeting?**

Jed spoke on Article 19; he stated that in the long run it would save the Town money and other towns have done the same. He said that voting on it will not change it now but it would go to Town Meeting next year. Dan Whitney said that the time frame is better and our budget could be planned along with the State budget. Kirk Stenersen made a motion to move the question with a second; the question was moved.

No changes were made to Article 19.

YES – 643 NO – 433

ARTICLE 20. **Shall the Town vote to increase the income limit amount for the disabled and elderly exemption from $25,0000 to $35,000 for a single person and $35,000 to $49,000 for married couples with no changes in the current asset limit amount? (By Petition)**

Petitioner Holly Koski presented Article 20; she stated that the last time the Town increased the income qualification limits was in 2007; the gross income amounts were set at $25,000 for a single person and $35,000 for a couple. Holly said that the State mandates gross income which does not take into consideration any taxes, mortgage,



mortgage interest, heat, gas, electricity, groceries, homeowners and medical insurance, etc. when qualifying for the exemption. She stated that her medical expenses in 2010 were almost $11,000. According to 2010 census of the Town of Rindge, there were 572 residents over the age of 65 and, of those, only 67 elderly and 27 disabled homeowners were qualified for the tax exemption.

After some discussion from the floor, there were no changes made to Article 20.

YES – 615 NO – 492

ARTICLE 21. **Shall the Town vote to completely discontinue a 200 foot dead end portion of Fieldstone Lane that extends into Map 25, Lot 8 and does not continue as a right of way or easement to any other properties? (By Petition)**

Petitioner Dana Ryll presented Article 21; Dana stated that the road dead-ends on his property and their house does not meet setbacks from the road; therefore, they have to obtain a permit from the Zoning Board of Adjustment whenever they want to make changes, such as the recently built livestock shed. After some discussion from the floor, there was a motion to move the question with a second; the question was moved.

No changes were made to Article 21.

YES – 815 NO – 266

ARTICLE 22. **ARE YOU IN FAVOR OF THE ADOPTION OF AMENDMENT TO THE ZONING ORDINANCE AS PROPOSED BY PETITION AND GENERALLY DESCRIBED AS FOLLOWS: Amend the Rindge Zoning Map by rezoning the parcel identified on the Rindge Tax Map as Map 32 Lot 12 located on 1420 NH RT 119, containing 8.00+-acres, currently zoned "Village District" to "Gateway Central District"? (By Petition)**

Dave Tower stated that, since Article 22 is a Zoning Article and the Planning Board discusses Zoning Articles, there would be no discussion on Article 22.

No changes were made to Article 22.

YES – 666 NO - 433

Al Lefebvre made a motion to restrict reconsideration with a second.

The meeting was adjourned at 1:30pm.

Respectfully Submitted,

Nancy A. S. Martin

Nancy A. S. Martin
Rindge Town Clerk



Town Meeting Results

BALLOT 1 OF 2

OFFICIAL BALLOT
ANNUAL TOWN ELECTION
RINDGE, NEW HAMPSHIRE
MARCH 13, 2012

Nancy A. Sykes
TOWN CLERK

INSTRUCTIONS TO VOTERS

A. TO VOTE, completely fill in the OVAL to the RIGHT of your choice(s) like this: ●
B. Follow directions as to the number of candidates to be marked for each office.
C. To vote for a person whose name is not printed on the ballot, write the candidate's name on the line provided and completely fill in the OVAL.

SELECTMAN (3 yrs) (Vote for not more than one)
- ROBERTA K. OESER 910
- PATRICIA MARTIN 494
- (Write-in)

MODERATOR (2 yrs) (Vote for not more than one)
- DAVID M. TOWER 966
- (Write-in)

TREASURER (2 yrs) (Vote for not more than one)
- HELENE ROGERS 685
- EVELYN L. LEWIS 268
- (Write-in)

PLANNING BOARD (3 yrs) (Vote for not more than two)
- LYMAN "HANK" WHITNEY 766
- PHILIP SIMONE 459
- (Write-in)
- (Write-in)

TRUSTEE OF TRUST FUNDS (3 yrs) (Vote for not more than one)
- THEODORE "TED" COVERT
- 872
- (Write-in)

BUDGET ADVISORY COMMITTEE (3 yrs) (Vote for not more than two)
- MICHAEL J. SIELICKI 537
- THOMAS CONEYS 713
- Kale Stenersen
- 178 (Write-in)
- (Write-in)

BOARD OF ADJUSTMENT (3 yrs) (Vote for not more than two)
- PHILIP "PHIL" STENERSEN 737
- JANET GOODRICH 744
- (Write-in)
- (Write-in)

LIBRARY TRUSTEE (3 yrs) (Vote for not more than two)
- ROBERTA GORDENSTEIN 787
- BRUCE CLARK 733
- (Write-in)
- (Write-in)

SUPERVISOR OF THE CHECKLIST (6 yrs) (Vote for not more than one)
- IDAMAE HARMAN 885
- (Write-in)

CEMETERY TRUSTEE (3 yrs) (Vote for not more than one)
- TIMOTHY DERR 894
- (Write-in)

CEMETERY TRUSTEE (2 yrs) (Vote for not more than one)
- AMY RAYMOND 921
- (Write-in)

CEMETERY TRUSTEE (1 yr) (Vote for not more than one)
- Arwen Mellon 43
- Ken Raymond 22
- (Write-in)

ARTICLES

2. ARE YOU IN FAVOR OF THE ADOPTION OF THE AMENDMENT TO THE ZONING ORDINANCE AS PROPOSED BY THE PLANNING BOARD AND GENERALLY DESCRIBED AS FOLLOWS: Amend Article IV (Residential District) Paragraph A (Uses Permitted) of the Zoning Ordinance by deleting subsection "a" under number 4 (Bed and Breakfast Establishments) in its entirety which reads, "The proposed Bed & Breakfast must be located in a residential structure that exists as of the effective date of this amendment (3-13-90)"?(Recommended by the Planning Board)
784 YES ○ 312 NO ○

3. ARE YOU IN FAVOR OF THE ADOPTION OF THE AMENDMENT TO THE TOWN OF RINDGE ZONING ORDINANCE AS PROPOSED BY THE PLANNING BOARD AND GENERALLY DESCRIBED AS FOLLOWS: by amending the Zoning Ordinance in order to renumber and reorder sections, correct cross references and make typographical corrections and clerical revisions? (Recommended by the Planning Board)
891 YES ○ 210 NO ○

TURN BALLOT OVER AND CONTINUE VOTING



Town Meeting Results

ARTICLES CONTINUED

4.	ARE YOU IN FAVOR OF THE AMENDMENT TO THE IMPACT FEE ORDINANCE AS PROPOSED BY THE PLANNING BOARD AND GENERALLY DESCRIBED AS FOLLOWS: Amend the Rindge Impact Fee Ordinance by amending paragraph B number 3 subsection "d" by including the words "or location". The provision now reads: "d. The conversion of an existing use to another use if such change creates a net increase in the demand on public capital facilities that is the subject of impact fee assessments. New development shall not include the replacement of an existing manufactured home, or the reconstruction of a structure that has been destroyed by fire or natural disaster, or replacement of an existing structure where there is no change in its size, density, type of use or location and where there is no net increase in demand on the public capital facilities of the town of Rindge? (Recommended by the Planning Board)	788 YES ☐ NO ☐ 306
5.	ARE YOU IN FAVOR OF THE ADOPTION OF THE AMENDMENTS TO THE TOWN OF RINDGE SIGN ZONING ORDINANCE AS PROPOSED BY THE PLANNING BOARD AND GENERALLY DESCRIBED AS FOLLOWS: Amend Section V.A. of the Rindge Sign Ordinance to allow Off Premises Signs Subject to the granting of a Conditional Use Permit by the Planning Board under Article XII of the Zoning Ordinance. Amend Appendix A. of the Rindge Sign Ordinance by changing the sign description from White Background, Green House and Lettering" to "White Background, Dark House, and Dark Lettering."? (Recommended by the Planning Board)	793 YES ☐ NO ☐ 293
6.	Shall the Town vote to authorize the Selectmen to enter into a five (5) year lease / purchase agreement to purchase and equip a new Fire Engine to replace Engine 2 for the Fire Department in the amount of Three Hundred Fifty Thousand Dollars ($350,000), to be payable over a term of five years with annual payments of approximately Seventy-Six Thousand Dollars ($76,000) per year and further to raise and appropriate Seventy-Six Thousand Dollars ($76,000) for the first payment? This lease agreement contains an escape clause. (Recommended by the Board of Selectmen, 3 in favor, 0 opposed) (Recommended by the Budget Advisory Committee, 5 in favor, 1 opposed)	603 YES ☐ NO ☐ 499
7.	Shall the Town vote to raise and appropriate as an operating budget, not including appropriations by special warrant articles and other appropriations voted separately, the amounts set forth on the budget posted with the warrant or as amended by vote of the first session, for the purposes set forth therein, totaling Three Million Six Hundred Sixteen Thousand Two Hundred Twenty Dollars ($3,616,220)? Should this article be defeated, the default budget shall be Three Million Six Hundred Thirty Nine Thousand Eight Hundred Eighty Dollars ($3,639,880) which is the same as last year, with certain adjustments required by previous action of the Town or by law or the governing body may hold one special meeting, in accordance with RSA 40:13, X and XVI, to take up the issue of a revised operating budget only. Note: This warrant article (operating budget) does not include appropriations in ANY warrant article. (Recommended by the Board of Selectmen, 3 in favor, 0 opposed) (Recommended by the Budget Advisory Committee, 6 in favor, 0 opposed)	861 YES ☐ NO ☐ 242
8.	Shall the Town vote to raise and appropriate the sum of Twenty-Five Thousand Dollars ($25,000) to be added to the Meetinghouse Maintenance Expendable Trust Fund to fund exterior painting? (Recommended by the Board of Selectmen, 3 in favor, 0 opposed) (Recommended by the Budget Advisory Committee, 6 in favor, 0 opposed)	666 YES ☐ 444 NO ☐
9.	Shall the Town vote to raise and appropriate the sum of Thirty-Five Thousand Dollars ($35,000) to be added to the Revaluation Capital Reserve Fund? (Recommended by the Board of Selectmen, 3 in favor, 0 opposed. Recommended by the Budget Advisory Committee, 6 in favor, 0 opposed.)	591 YES ☐ 496 NO ☐
10.	Shall the Town vote to raise and appropriate the sum of Thirty-Five Thousand Dollars ($35,000) for the purpose of purchasing a vehicle for the Fire Department to replace the fire prevention car, said sum to be withdrawn from the Capital Reserve Fund established for this purpose (Fire Department Equipment). (Recommended by the Board of Selectmen, 3 in favor, 0 opposed. Not Recommended by the Budget Advisory Committee, 2 in favor, 4 opposed.)	388 YES ☐ 722 NO ☐
11.	Shall the Town vote to establish a capital reserve fund for the purpose of funding municipal energy projects and to raise and appropriate the sum of Thirty Thousand Dollars ($30,000) for said fund and further to name the Selectmen as agents of the fund? (Recommended by the Board of Selectmen, 2 in favor, 1 opposed. Not Recommended by the Budget Advisory Committee, 0 in favor, 6 opposed.)	272 YES ☐ 834 NO ☐
12.	Shall the Town vote to raise and appropriate the sum of Fifty-Five Thousand Dollars ($55,000) for the purpose of replacing the 2001 one-ton truck in the Highway Department, said sum to be offset by approximately $8,000 from trading in the old truck? (Recommended by the Board of Selectmen, 3 in favor, 0 opposed. Not Recommended by the Budget Advisory Committee, 3 in favor, 3 opposed.)	458 YES ☐ 646 NO ☐
13.	Shall the Town vote to raise and appropriate the sum of Seventy Thousand Dollars ($70,000) to be added to the Fire Department Equipment Capital Reserve Fund to save for the replacement of the Self Contained Breathing Apparatus (SCBAs)? (Recommended by the Board of Selectmen, 3 in favor, 0 opposed. Recommended by the Budget Advisory Committee, 6 in favor, 0 opposed.)	641 YES ☐ 446 NO ☐
14.	Shall the Town vote to establish a capital reserve fund for the Town's share of any and all costs associated with replacing the Wellington Road bridge and further to raise and appropriate the sum of Eighteen Thousand Dollars ($18,000) to be added to the fund? (Recommended by the Board of Selectmen, 3 in favor, 0 opposed. Recommended by the Budget Advisory Committee, 6 in favor, 0 opposed.)	742 YES ☐ NO ☐ 367

GO TO NEXT BALLOT AND CONTINUE VOTING